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The Myth Called 'Perfect Victim'

The myth called 'perfect victim'

The Tejpal case shows how the 'ideal victim' stereotype can shape judicial perceptions, with survivors often judged by their behaviour and personal background rather than the evidence; such assumptions have created a hierarchy of victimisation, prompting the court to call for greater gender sensitivity in judicial writing

LETTER & SPIRIT

Grace Paul Vallooran

In August 6, the Goa Division Bench of the Bombay High Court set aside the 2021 judgment of the trial court that had acquitted Tarun Tejpal. The High Court convicted Tejpal, the former editor of *Tehelka* magazine, and sentenced him to 10 years of rigorous imprisonment for raping a former colleague.

While terming the trial court's ruling "perverse", the High Court also said that it had fallen for the notion that a sexual assault complainant must be a 'perfect victim' and conduct herself in a certain way to appear credible.

Nils Christie's concept

What is the idea of a 'perfect victim' or an 'ideal victim'? It was theorised by Norwegian criminologist Nils Christie in a chapter of the same name, in the book *From Crime Policy to Victim Policy*, in 1986.

Christie said the 'ideal victim' or 'perfect victim' possesses five main attributes. First, they are often female, disabled, very young, or very old, and are therefore weak in relation to the offender. Second, they are involved in "respectable activities". Third, they cannot reasonably be blamed for being where they were during the crime. Fourth, they do not know the offender personally. Fifth, they are attacked by a perpetrator who is "big and bad". Christie also noted that while being weak, the victim must have enough social power to influence sympathy and have their victim status recognised.

This one-size-fits-all idea of victimhood is propagated widely – by the media, social media, films, and by the larger society. Race, class, gender and other factors are involved in these dramatic portrayals where the most "innocent" and "deserving" become the 'ideal victim' while others are viewed as "undeserving" of sympathy, Christie argued.

In contrast to the idea of the 'ideal



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victim' is the idea of the 'ideal offender'. According to Christie, such an individual must be framed as purely bad, dangerous, and a stranger to the victim so that it becomes easy for society not to like him. When the offender is a familiar person with a "good background story", the 'ideal' dynamic breaks down.

In the case of Tejpal, his social status and his image as a liberal intellectual complicated this stereotype of the 'ideal offender'. As per Christie's argument, when there is no 'ideal offender' to hate, it becomes hard to perceive an 'ideal victim' to sympathise with.

Hierarchy of victimisation

This narrow perception of an 'ideal victim' creates a hierarchy of victimisation. Those who are thought of as "undeserving" are even perceived as contributing to the situation and receive less sympathy or none at all.

For instance, in the 1979 Mathura custodial rape case of a teenager, the Sessions Court had relied on the survivor's previous sexual experience to reason that she had likely consented, and described her as "habituated to sexual intercourse". The Supreme Court, while

acquitting the accused policemen, noted the absence of any alarm or resistance from the survivor or injuries on her body.

Similarly, in the gang-rape case of social worker Bhanwari Devi (1992) that became a catalyst for the formulation of the Vishakha guidelines and later, the enactment of the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013, the Jaipur District and Sessions Court in 1995 acquitted the accused of gang rape. The court reasoned that it was unlikely that upper caste men would "pollute" themselves by having sexual relations with a Dalit woman. In short, in the eyes of the court, Devi's caste status made her an unlikely 'ideal victim'.

In 2017, in an interim order, a Punjab and Haryana High Court division bench suspended the sentences and granted bail to three former Jindal Global Law School students convicted of gang-raping and blackmailing a classmate. It described the survivor's behaviour as having a "perverse streak".

The court said, "...We are conscious of the fact that allegations of the victim regarding her being threatened into submission and blackmail lend sufficient

diabolism to the offence, but a careful examination of her statement again offers an alternate conclusion of misadventure stemming from a promiscuous attitude and a voyeuristic mind." This remark placed the survivor's sexual behaviour at the centre of the court's assessment, effectively questioning her status as an 'ideal victim'.

These rulings have demanded a 'performance' of trauma from survivors. Any digression from that expected behaviour has cast doubts on the survivors' credibility and status as legitimate. The rulings reflect Christie's theory that victimhood is not an objective state, but a deeply gendered moral status that can be granted or denied by society.

The Tejpal case

In 2021, in the Tejpal case, the Goa Sessions Court noted that there were several discrepancies in the survivor's versions. It also said that while the victim had claimed to be in shock and trauma after exiting the lift on November 7, 2013, the CCTV footage showed that she was composed and smiling.

The High Court criticised the Sessions Court for focusing on the complainant's conduct, reactions, and personal background instead of the evidence on record. It also noted that a survivor has already faced trauma and might feel too ashamed, nervous, or confused to respond clearly when questioned repeatedly in an unfamiliar environment.

The Supreme Court has questioned this idea in some of its judgments. In 2025, former Chief Justice B.R. Gavai had apologised on behalf of the judiciary for the Supreme Court judgment in the Mathura case, calling it a "moment of institutional embarrassment".

Recently, on August 3, the Supreme Court issued a report recommending greater gender sensitivity in judicial writing. It cautioned judges against drawing adverse conclusions from delayed reporting, lack of physical injuries, inconsistencies in testimony or a survivor's demeanour, noting that trauma affects people differently.

THE GIST

▼ Nils Christie's 'ideal victim' theory holds that vulnerability, respectability and innocence shape who is perceived as deserving of sympathy.

▼ Court rulings in cases such as Mathura, Bhanwari Devi and Tejpal show how survivors' behaviour and personal circumstances have been used to question their credibility.

▼ The Supreme Court has recently urged judges to avoid such assumptions, noting that trauma can affect survivors differently.

The Myth Called 'Perfect Victim'

- **The Trigger : Tejpal Case**

- On August 6, the Goa Division Bench of the Bombay High Court set aside the 2021 trial court judgment acquitting Tarun Tejpal, former editor of Tehelka, convicting him and sentencing him to 10 years' rigorous imprisonment for raping a former colleague.
- The High Court termed the trial court's ruling 'perverse', holding it had fallen for the notion that a complainant must be a 'perfect victim' and conduct herself a certain way to appear credible.

- **Nils Christie's 'Ideal Victim' Theory**

- Norwegian criminologist Nils Christie theorised the 'ideal victim' concept in 1986, identifying five attributes: often female, weak, engaged in 'respectable' activities, unable to be blamed for being where they were, and attacked by an unfamiliar offender who is 'big and bad'.
- Christie's mirror concept the 'ideal offender' must be framed as purely bad and a stranger; when the offender is familiar or 'respectable', as in Tejpal's case, this dynamic breaks down and complicates sympathy for the victim.

- **Trauma-Informed Judicial Approach**

- An approach recognising that trauma responses delayed reporting, inconsistent testimony, apparent composure vary widely between individuals and should not by themselves be treated as markers of a lack of credibility.

Dignity in Death: Debate Over 'Humane' Execution

Dignity in death: Debate over 'humane' execution



AMAAL SHEIKH & ARAV SHAH

CAN A method of execution devised in colonial India still satisfy the Constitution's promise of dignity? The Supreme Court on Tuesday said it can, at least on the material currently before it. The bench dismissed a PIL that argued the method is scientifically unreliable and violates the right to a dignified death under Article 21 of the Constitution.

The court held that the challenge ran into two hurdles — the 1983 precedent of *Deena vs. Union of India* in which a three-judge bench upheld hanging as a Constitutional mode of execution, and Parliament's decision to retain hanging while enacting the Bharatiya Nagarik Suraksha Sanhita (BNSS).

The method

In India, hanging is the prescribed method of executing death sentences and is a result of British Common Law. Historically, hanging was carried out through the "short-drop" method. As the name suggests, it's a short drop that causes asphyxiation.

Today, modern executions rely on the long-drop method. The longer drop is meant to immediately snap the second and third cervical vertebrae (C2 and C3) and, thus, the spinal cord. This is meant to instantly render the individual unconscious. But the length of the drop must be calibrated to the individual's weight and height. A drop that is too short can fail to break the neck and result in prolonged strangulation. Conversely, a drop that is too long can risk decapitating the person.

Standard prison protocols dictate that the body be left hanging for 30 minutes after the trap door opens.

The challenge

The petition sought a declaration that the provision prescribing hanging was unconstitutional and argued that Article 21 includes a right to die through a dignified procedure. They said the method is "accompanied by intense physical torture and

• CAPITAL PUNISHMENT IN INDIA....



921

Executions that have taken place between 1947 and 2025



1,281

Convicts sentenced to death between 2016 and 2025

- 8 Executions that have taken place since 2001.
- The most recent ones were in 2020, of the four Delhi gang rape and murder convicts.

... AND THE WORLD

The following are the countries that recorded the most executions in 2025



SOURCE FOR INDIA FIGURES: THE SQUARE CIRCLE CLINIC, NALSAR;
SOURCE FOR GLOBAL FIGURES: AMNESTY INTERNATIONAL

pain," and inherently unpredictable.

They cited a 1992 study of the remains of 34 people hanged in England between 1882 and 1945. Fractures at C2-C3 were common, but the "hangman's fracture" — assumed to cause near-instant death — showed up in only three of the 34 cases; six died of asphyxiation instead. They said this made hanging neither quick nor controllable.

Anup Surendranath, Executive Director of The Square Circle Clinic at NALSAR University of Law — formerly Project 39A, which intervened in the proceedings — told *The Indian Express* that the studies placed before the court raised broader concerns about the assumptions underlying hanging as a mode of execution. Surendranath said researchers who examined the remains of executed prisoners found that "people had not died by this instant breaking of the neck. Instead there were a whole host of other very painful, long-drawn suffering reasons that had caused their death".

The jurisprudence

Section 393(5) of the BNSS provides that where a person is sentenced to death, "the sentence shall direct that he be hanged by

the neck till he is dead". The clause, which has barely changed since it was introduced in the CrPC in 1861, has survived multiple amendments and now appears in the BNSS.

The right to die with dignity flows from the right to life guaranteed under Article 21 of the Constitution. The Supreme Court in *Gian Kaur v State of Punjab* (1996) held that the right to life includes the right to live and consequently to die with dignity.

The Supreme Court in *Deena vs. Union of India* (1983), upheld the constitutional validity of hanging after examining medical evidence, expert opinion, and comparative execution methods. The court held that hanging, when properly administered, is a quick and certain method of execution and does not violate Article 21. It said that the process causes no greater pain than any other known method and avoids "barbarity, torture and degradation".

Why top court upheld hanging

The Union government maintains that hanging remains the "safest and quickest" method of execution. It said that no botched execution has ever been recorded in India, while lethal injection in the US carries a well-documented history of failures.

The bench found no reason to revisit *Deena*. It noted that the petitioners had placed scientific material before the court but held that the material did not displace the basis on which *Deena* had been decided. Nor did it establish that lethal injection, electrocution, lethal gas or shooting offered an advantage over hanging.

It referred to the reasoning in *Deena*, where hanging through the long-drop method was described as a process intended to bring about immediate unconsciousness through cervical fracture. The court said the existing method continues to satisfy the State's obligation to carry out a death sentence with "decency and decorum" and without "degradation or brutality".

While dismissing the petition, the bench stopped short of treating the issue as closed forever. It observed that Constitutional law evolves and that future challenges could arise if new scientific, medical or empirical material fundamentally alters the assumptions on which *Deena* was decided. It also left it open to the Union government to examine alternative methods

SC has upheld validity of execution by hanging. What does the law say about the right to die with dignity, and how do other countries carry out executions?

of execution, should it choose to do so.

Modern execution methods

More than two-thirds of the world's nations — around 113 — have ended the death penalty in law or practice, according to Amnesty International. Yet, a 2025 report by the non-profit showed a 12% increase in executions compared to the previous year.

The search for a humane method of execution has led to varied practices, each carrying its own scientific and ethical controversies. Hanging remains one of the more widely authorised methods of execution, particularly in countries influenced by British Common Law, including India, Singapore and Japan. A 2012 Cornell Law School database identified 60 countries that authorised hanging as a method of execution. Other prevalent methods are:

Lethal injection: This is the primary method in several US states where the death penalty is allowed and heavily utilised in China. In this method, a sequence of drugs is administered to a convict — an anesthetic, a paralytic and finally potassium chloride. The procedures can often get botched owing to compromised venous access.

Shooting (firing squad or single bullet): This is used in China, North Korea, Somalia and parts of West Asia. While visually violent and traumatic for executioners, proponents say it causes near-instantaneous cardiac or neurological destruction.

Beheading: Saudi Arabia carries out executions by beheading with a sword. It is reliant on the executioner's precision.

Nitrogen hypoxia: A recently introduced method in the US involving the inhalation of pure nitrogen gas. It is designed to cause asphyxiation without triggering the hypercapnic alarm response — that panicked feeling of suffocation. Critics argue it has not been sufficiently vetted and amounts to human experimentation.

The legal debate over methods of execution is largely between how state power and human rights intersect. Reformists argue hanging can take too much time if there are any errors, constituting cruel and inhuman treatment. But while capital punishment remains in use, finding an execution method that balances the finality of state action with the dignity of the individual will remain a difficult question.

Dignity in Death: Debate Over 'Humane' Execution

Arguments in Favour

Retributive Justice

Deterrence Theory

The "Taxpayer Burden" Argument

Public Will

Arguments Against

No Empirical Evidence of Deterrence

Judicial Arbitrariness

The justice system is fallible

Socio-Economic Bias

Reformative Justice

From Scientific Research to Geopolitics: Why India Needs a Clear 'Arctic Narrative'

From scientific research to geopolitics: Why India needs a clear 'Arctic narrative'



EXPERT EXPLAINS
CAPT. ANURAG BISEN (RETD)

VETERAN SUBMARINER AND SENIOR FELLOW,
VIVEKANANDA INTERNATIONAL FOUNDATION

INDIA HAS long viewed its engagement with the Arctic through the lens of scientific research. But the Arctic is evolving into a hub where climate change and geopolitics converge. Now, a report by the Parliamentary Standing Committee on External Affairs, titled "India's Role and Presence in the Arctic and Antarctic Regions", asks: What is India's narrative on the Arctic?

Few realise that India, as part of the British Dominion, was among the original 14 signatories of the 1920 Svalbard Treaty, which entitles an Indian to visit Svalbard — an

archipelago located between mainland Norway and the North Pole — without a visa and to engage in commercial ventures.

Today, India remains one of only two developing countries with a permanent scientific presence in the region, through the Himadri research station in Ny-Ålesund, Svalbard. The report, however, highlights a concerning gap between India's ambitions and its capabilities.

The Indian narrative

The first pillar of such a narrative must be climate security. India's dependence on the monsoon remains profound. Agriculture still accounts for roughly 18% of its gross domestic product and supports more than half of its population. Nearly 70% of India's annual rainfall comes from the southwest monsoon.

Scientific studies increasingly point to an Arctic-Indian monsoon teleconnection. Rapid Arctic warming and declining sea ice alter atmospheric circulation patterns that influence monsoon behaviour across South Asia, affecting rainfall patterns, agricultural productivity, food security and



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The Svalbard archipelago, where India's Himadri research station is located.

economic growth in India.

Second, the Arctic is a major contributor to global sea-level rise. If current trends continue, entire low-lying island states — such as the Maldives — face existential threats. Large parts of Bangladesh and significant stretches of India's coastline could

experience recurrent flooding and displacement. By some estimates, more than 250 million people living in vulnerable coastal regions of South Asia could be affected by mid-century.

For India, this is not merely an environmental issue. Large-scale climate-induced migration from neighbouring regions could create unprecedented humanitarian, social and security challenges.

Geopolitical importance

Two of India's closest strategic partners, the US and Russia, are Arctic nations. China, India's principal long-term adversary, has invested heavily in Arctic infrastructure, research and shipping despite being an extra-regional state.

The Arctic is increasingly emerging as a battleground for major powers, with maritime access, energy security, and critical mineral supply chains intersecting.

India also maintains friendly relations with other Arctic nations, as was evident in the recent India-Nordic Summit. The question is whether India is prepared to engage at a scale commensurate with its interests.

In terms of engagement, India's present challenge is structural: responsibility for Arctic affairs is fragmented across multiple divisions within the Ministry of External Affairs. The Arctic states and Arctic Council-related matters are handled by four different territorial and functional divisions, making a coherent whole-of-government Arctic engagement difficult.

India, despite having an Arctic Policy since 2022, still lacks a dedicated senior official responsible for Arctic affairs.

Polar Research Vessel

Without an ice-class research vessel, India's scientific footprint in the Arctic remains largely confined to Svalbard. Access to the wider Arctic Ocean depends on collaboration with foreign partners and on the availability of chartered vessels.

The committee notes that India needs a dedicated Polar Research Vessel (PRV) to undertake meaningful pan-Arctic research. An indigenous PRV, despite being sanctioned in 2014, is expected to be delivered only towards the end of this decade.

Meanwhile, China offers an example: it

acquired a second-hand icebreaker from Ukraine and developed indigenous capability. Today, it operates several polar-capable vessels and is the second country after Russia to be building a nuclear icebreaker.

Shortfall in funding

The report's most striking revelation concerns funding. India spent just Rs 17.53 crore on Arctic activities in 2024-25; less than one-tenth of its expenditure on Antarctica and less than the cost of building a kilometre of a flyover. For a region that affects sea-level rise along India's 11,098-km coastline and is a climate and geopolitical hotspot, the figure appears apologetic.

On the mismatch between interests and investments, the Committee effectively asks: if the Arctic is important enough to warrant a national policy, a dedicated parliamentary study, and repeated diplomatic engagement with Arctic states, why does India's budgetary commitment suggest otherwise?

India needs a coherent Arctic narrative. The Arctic Policy provided the framework. The Parliamentary panel identified gaps. Now, policy must translate into capability.

From Scientific Research to Geopolitics: Why India Needs a Clear 'Arctic Narrative'

A Parliamentary Standing Committee report, 'India's Role and Presence in the Arctic and Antarctic Regions', asks: what is India's narrative on the Arctic, as the region evolves into a hub where climate change and geopolitics converge?

Why should India invest on Arctic ?

- **India was among the original 14 signatories of the 1920 Svalbard Treaty, and remains one of only two developing countries with a permanent scientific presence in the region, through the Himadri research station.**
- **India's dependence on the monsoon remains profound: agriculture accounts for roughly 18% of GDP, with nearly 70% of annual rainfall from the southwest monsoon, increasingly linked to an Arctic-Indian monsoon teleconnection.**
- **The Arctic is also a major contributor to global sea-level rise; more than 250 million people in vulnerable South Asian coastal regions could be affected by mid-century.**
- **Two of India's closest strategic partners, the US and Russia, are Arctic nations, while China India's principal long-term adversary has invested heavily in Arctic infrastructure despite being an extra-regional state.**
- **India maintains friendly relations with other Arctic nations too, as seen at the recent India-Nordic Summit, but the report questions whether India is prepared to engage at a scale matching its stated interests.**

From Scientific Research to Geopolitics: Why India Needs a Clear 'Arctic Narrative'

Issue

- **India's Arctic engagement is structurally fragmented across four divisions within the Ministry of External Affairs, despite having an Arctic Policy since 2022.**
- **India spent just ₹17.53 crore on Arctic activities in 2024-25 less than a tenth of its Antarctic spend**
- **Lack of a dedicated Polar Research Vessel, India's footprint stays largely confined to Svalbard.**

From Scientific Research to Geopolitics: Why India Needs a Clear 'Arctic Narrative'

UPSC Prelims 2015 Question:

The term 'IndARC', sometimes seen in the news, is the name of

1. an indigenously developed radar system inducted into Indian Defence
2. India's satellite to provide services to the countries of Indian Ocean Rim
3. a scientific establishment set up by India in Antarctic region
4. India's underwater observatory to scientifically study the Arctic region

Amazon and Pioneer Species : Monthly Session

Thank You